

CHAPTER 30.

An Act to provide for the foundation of Bishoprics of Southwark and Birmingham and for matters incidental thereto. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Application
of 41 & 42
Vict. c. 68.

1. The Bishoprics Act, 1878 (in this Act referred to as the principal Act), including the repealed portions thereof, shall, subject to the modifications set forth in the First Schedule to this Act, have effect for the purpose of the foundation of new bishoprics of Southwark and Birmingham as if the Second Schedule to this Act were substituted for the schedule to the principal Act and as if the principal Act had been passed at the date of the passing of this Act.

Short title.

2. This Act may be cited as the Bishoprics of Southwark and Birmingham Act, 1904.

SCHEDULES.

FIRST SCHEDULE.

MODIFICATIONS OF PRINCIPAL ACT.

1. A scheme made under section seven of the principal Act—

- (a) may provide for the re-arrangement of the boundaries of the new dioceses and of any dioceses contiguous thereto (including the diocese of Hereford) and of the patronage of the bishops of those dioceses and, as incidental to any re-arrangement of the boundaries of the bishopric of Rochester, for the transfer from the bishop of Worcester, with his consent, of the patronage of the benefices of Bromley, Chislehurst and Dartford to the bishop of Rochester and, in relation to any re-arrangement of boundaries, may make any necessary provision for the transfer of any terriers, tithe apportionment, maps, plans and other documents; and
- (b) shall, as regards the bishopric of Southwark, provide for the existing residence of the bishop of Rochester becoming the residence of the bishop of Southwark and for the payment of the surplus arising from the sale of Addington to the endowment fund of the bishopric of Southwark, after setting aside the sum of fifteen thousand pounds for the provision and maintenance of a residence for the bishop of Rochester.

2. The trust to make good to the contributory bishopric the transferred portion of the endowment or income of that bishopric, under section eight of the principal Act, shall not apply in the case of the new bishopric of Southwark; and, in calculating the annual value of the endowment fund of the bishopric of Southwark for the purpose of section four of the principal Act, the estimated annual value of the part of the surplus arising from the sale of Addington to be paid to that fund under this Act shall be included in that fund.

SECOND SCHEDULE.

PROPOSAL FOR NEW BISHOPRICS.

I.—BISHOPRIC OF SOUTHWARK.

1. The bishop to be bishop of Southwark.
2. The diocese to consist of the rural deaneries of Greenwich, Lewisham, Woolwich, Battersea, Camberwell, Clapham, Dulwich (except the parishes within the Urban District of Penge), Kennington, Lambeth, Newington, Southwark, Barnes, Beddington, Caterham, Godstone, Kingston, Reigate, Richmond, Streatham and Wandsworth and of such other parishes as may be transferred to the diocese in pursuance of this Act.
3. The church of St. Saviour in Southwark, subject to the rights of the patron and incumbent of that church, to be the cathedral church.
4. Subject to the rights enjoyed by any person at the passing of this Act, there shall be transferred to the endowment fund of the bishopric of Southwark such portion of the endowment or income of the bishopric of Rochester as will reduce that endowment or income from the annual sum of four thousand five hundred pounds to the annual sum of four thousand pounds, irrespective of tenths or first fruits.
5. The bishop to be subject to the metropolitan jurisdiction of the Archbishop of Canterbury.

II.—BISHOPRIC OF BIRMINGHAM.

1. The bishop to be the bishop of Birmingham.
2. The diocese to consist of the archdeaconry of Birmingham and the rural deanery of Handsworth and of such other parishes as may be transferred to the diocese in pursuance of this Act.
3. Such church in Birmingham as may be determined by the Order of His Majesty in Council, subject to the rights of the patron and incumbent of that church, to be the cathedral church.
4. Subject to the rights enjoyed by any person at the passing of this Act, there shall be transferred to the endowment fund of the bishopric of Birmingham such portion of the endowment or income of the bishopric of Worcester as will reduce that endowment or income from the annual sum of five thousand pounds to the annual sum of four thousand two hundred pounds, irrespective of tenths or first fruits.
5. The bishop to be subject to the metropolitan jurisdiction of the Archbishop of Canterbury.

CHAPTER 31.

An Act to provide for the Early Closing of Shops.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: